

trademark infringement, just as courts of law often do in copyright and patent cases. Cf., e. g., *Hartell v. Tilghman*, 99 U. S. 547, 555; *Arnstein v. Porter*, 154 F. 2d 464; *Bruckman v. Hollzer*, 152 F. 2d 730.

Consequently what is involved in this case is nothing more than a joinder in one complaint of prayers for both legal and equitable relief. In such circumstances, under principles long since established, *Scott v. Neely*, 140 U. S. 106, 110, the petitioner cannot be deprived of his constitutional right to a jury trial on the "legal" claim contained in the complaint.

On this basis I concur in the judgment of the Court.